

Ahmad Wali Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 August 2022 · WRIT - C No. 22829 of 2022 · **Writ disposed; liberty to file Clause 6.8 objection; coercive recovery stayed for eight weeks or till disposal.**

HEADNOTE

A writ challenging recovery of electricity dues and seeking restoration of supply is disposed of without examining merits. The consumer is given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with a limited stay of coercive action on the demand.

FACTUAL SUMMARY

Ahmad Wali Khan invoked the writ jurisdiction of the Allahabad High Court to quash a recovery citation dated 26 September 2021 issued by respondent no. 3 for Rs. 1,12,770, to restrain coercive measures pursuant to a recovery citation dated 17 March 2022, and to restore electricity supply. The Power Distribution Corporation (respondent nos. 4 and 5) stated on instructions that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8-objection-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 5 within four weeks. If so submitted, respondent no. 5 shall decide it in accordance with law, expeditiously, preferably within the next four weeks, after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court declined to examine the recovery citations or restoration of supply and relegated the consumer to a Para 6.8 objection before the distribution licensee, to be decided after hearing. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The 6.8 objection, if filed within four weeks, is to be decided preferably within four weeks after hearing, and coercive action on the demand is stayed for eight weeks or till disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATIONS AND THE DEMAND OF RS. 1,12,770

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

NOT DECIDED — ENTITLEMENT TO RESTORATION OF ELECTRICITY SUPPLY

The mandamus for forthwith restoration was not granted or refused on merits. ¶ 1